

SENATE No. 1439

The Commonwealth of Massachusetts

PRESENTED BY:

Kelly A. Dooner

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act exempting certain adjacent communities from MBTA zoning requirements.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Kelly A. Dooner</i>	<i>Third Bristol and Plymouth</i>	
<i>David F. DeCoste</i>	<i>5th Plymouth</i>	<i>1/27/2025</i>
<i>David F. DeCoste</i>	<i>5th Plymouth</i>	<i>1/27/2025</i>
<i>Colleen M. Garry</i>	<i>36th Middlesex</i>	<i>2/11/2025</i>
<i>Steven S. Howitt</i>	<i>4th Bristol</i>	<i>3/6/2025</i>
<i>Ryan C. Fattman</i>	<i>Worcester and Hampden</i>	<i>3/17/2025</i>
<i>Norman J. Orrall</i>	<i>12th Bristol</i>	<i>3/27/2025</i>
<i>Marcus S. Vaughn</i>	<i>9th Norfolk</i>	<i>3/28/2025</i>

SENATE No. 1439

By Ms. Dooner, a petition (accompanied by bill, Senate, No. 1439) of Kelly A. Dooner, David F. DeCoste, David F. DeCoste, Colleen M. Garry and others for legislation to exempt certain adjacent communities without direct access to MBTA services from zoning laws. Municipalities and Regional Government.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act exempting certain adjacent communities from MBTA zoning requirements.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

- 1 Section 3A of Chapter 40A of the General Laws, as appearing in the 2022 Official
2 Edition, is hereby amended by adding the following subsection:-
- 3 (d) Notwithstanding any general or special law, regulation, or policy to the contrary, the
4 requirements of this section shall not apply to any municipality categorized as an “Adjacent
5 Community” or an “Adjacent Small Town” without direct access to Massachusetts Bay
6 Transportation Authority service.